



Republic of the Philippines
Department of Agriculture
BUREAU OF FISHERIES AND AQUATIC RESOURCES
REGIONAL OFFICE NO. 4-A
Purok 3, Brgy. Bambang, Los Baños, Laguna
Tel. No. (049) 544-81-83 | region4arecords@bfar.da.gov.ph

SECURITY SERVICES CONTRACT

KNOW ALL MEN BY THESE PRESENTS:

This agreement is entered into by and between:

The **DEPARTMENT OF AGRICULTURE – BUREAU OF FISHERIES AND AQUATIC RESOURCES REGION IV-A**, with office address at Purok 3, Brgy. Bambang, Los Baños, Laguna represented herein by **SAMMY A. MALVAS**, Regional Director, hereinafter referred to as “**DA-BFAR IV-A**”;

-And -

The **DELTA MAROON SECURITY AGENCY CORPORATION** duly organized and existing under and by virtue of laws of the Philippines, with business address at 0188 Jasmin St. Rodriguez Village, Brgy. Lawa, Calamba City represented in this act by **LISA S. CASTILLO**, CEO/President, hereinafter referred to as the “**CONTRACTOR**”;

WITNESSETH

L. Castillo
WHEREAS, DA-BFAR IV-A posted in the PhilGEPS website on February 9, 2024 to February 28, 2024 per posting Ref No. 10541282 for the Procurement of Security Guard Services for One (1) Year for the following:

1. Regional Office (Los Baños, Laguna): 4 Guards;
2. BIFTOS (Ambulong, Tanauan): 3 Guards;
3. FDFF (Bay, Laguna): 3 Guards; and
4. Unisan Hatchery (Unisan, Quezon): 3 Guards.

WHEREAS, contract duration is Ten (10) Months;

WHEREAS, the Bids and Awards Committee conducted a public bidding for this procurement and three (3) bidders managed to submit its bid within the specified deadline. The **DELTA MAROON SECURITY AGENCY CORPORATION** offers a bid/quotation in the amount of **Two Million Five Hundred Forty-Five Thousand Two Hundred Fifty-Nine & 10/100 (Php2,545,259.10) Pesos Only**;

WHEREAS, the Bids and Awards Committee, after post-qualification, has recommended the Award of Contract to **DELTA MAROON SECURITY AGENCY CORPORATION** being the Lowest Calculated and Responsive Bid;



NOW THEREFORE, for and in consideration of the foregoing premises and of the mutual covenant, terms and conditions hereinafter set forth the parties hereto have agreed and do hereby agree that:

The Philippine Bidding Documents shall be deemed to form, be read and construed as part of this Agreement.

AND

DA-BFAR IV-A shall:

- a. Screen the guards to be assigned by the **CONTRACTOR**. Copies of licenses, results of neuro-psychotic examinations, training certificates and other requirements shall be furnished to **DA-BFAR IV-A**;
- b. Monitor any changes in the set-up of security guard assignments. Relievers should be introduced first to **DA-BFAR IV-A** or the Heads of Facilities, before they are asked to report for duty;
- c. Notify the **CONTRACTOR** within forty-eight (48) hours from the date the loss or damage occurred or discovered to enable the **CONTRACTOR** to conduct its own investigation;
- d. Suspend or withhold whatever contract payments may be due to the **CONTRACTOR** should they fail to pay such loss or damages within fifteen (15) days from the date of notice, or until such loss or damage shall have been duly paid, restituted or repaired by the **CONTRACTOR** or go after the performance bond set forth in this Contract;
- e. Have the options to demand payment for the replacement value of the lost properties, or its replacement by another at least substantially in the same condition as the former;
- f. Process and effect payments of actual security services rendered within fifteen (15) calendar days from receipt of the billing statement;
- g. Monitor attendance, payment of salaries and issuance of payslips to security guards, premium remittances and taxes to the government as required by law;
- h. Conduct inspection of all equipment and require replacement of defective units by notifying the **CONTRACTOR**;
- i. Conduct periodic performance evaluation to assess the quality of individual security guards and the **CONTRACTOR** performance, and determine compliance to the terms and conditions of the contract;
- j. Reserve the right to reduce or increase the number of guards, or replace all, some or any particular guard as the exigencies of its operation may require, and such

reduction, increase or replacement shall become effective 24 hours after notice thereof is given to the **CONTRACTOR**;

k. The Office of the Regional Director, through the Administrative and Finance Section, shall closely monitor the activities/assignments of the Security Guards to ensure that they are performing the functions enumerated in the approved Scope of Work as stated in the Contract;

l. Withhold any contract payments which may be due to the **CONTRACTOR** for non-compliance to any provisions of the Contract, until corrective measures have been done; and

m. Agree to increase the rate of security service fee herein prescribed, when there is an increase on the minimum wage, cost of living allowance, SSS Contributions, Administrative Fee or other similar increases mandated by the appropriate government authority.

CONTRACTOR shall:

a. Post a Performance Security upon signing of this Contract, in the form surety bond callable on demand issued by a surety or insurance company duly accredited by the Insurance Commission, equivalent to thirty percent (30%) of the Annual Contract Price;

b. Provide, assign and designate the thirteen (13) security guards to man the fixed and roving posts determined by **DA-BFAR IV-A** under the following schedule:
- on a 24 - hour basis, seven days a week, Monday to Sunday, including Holidays. No guard shall be allowed to render double/straight duty;

c. At all times maintains peace and order within the **DA-BFAR IV-A** premises and shall fulfill other security-related tasks that may be assigned by the responsible officers of the **DA-BFAR IV-A** such as inspection of incoming and outgoing vehicles, bags and packages;

d. Provide additional or reduce the number of guards/hours as maybe directed by **DA-BFAR IV-A** through a written notice under the same terms, conditions and rates of compensation set forth in the contract of service;

e. Deploy security guards that are well-trained licensed, uniformed, bonded, armed, and physically and mentally fit as supported by updated medical certificate and valid NBI clearance;

f. Notify the **DA-BFAR IV-A** in writing within thirty (30) calendar days in all matters pertaining to the rotation, reassignment, suspension and/or termination and imposition of disciplinary measures to erring security personnel.

g. Request for replacement, reassignment and rotation shall be acted by the **CONTRACTOR** within forty-eight (48) hours upon receipt of the written notification from the **DA-BFAR IV-A**;

h. Subject security guards to psychological, drug, alcohol or other related tests from government accredited testing centers annually;

i. Provide **DA-BFAR IV-A** additional guard for free during special occasions upon sufficient notice;

j. Secure a Certificate of Acceptability of Work from all the heads of the facilities on monthly basis as a requisite for processing of payments;

k. Ensure the payment of wages on a regular schedule every 15th and 30th of each month in accordance with the minimum wage law and/or provisions of the Labor Code and its implementing rules and regulations;

l. Submit proof of compliance with legal requirements on the payment of salaries such as duly signed payroll, issuance of payslips to security guards, premium remittances and taxes. This will serve as a requisite for every billing period;

m. Bind itself to protect and immune **DA-BFAR IV-A** from any suit or liability resulting from claims of any nature, whether death, injuries and damages that may be suffered by the security guards during their line of duty. The **CONTRACTOR** shall at all times stand solely liable and/or responsible and hold **DA-BFAR IV-A** free from any and all liabilities in respect thereto or arising there from;

n. Hold the **DA-BFAR IV-A** free from any liability from acts of its security guards which cause damage of whatever type to **DA-BFAR IV-A** employees and properties or to any third party and their properties;

o. Assume full responsibility for theft, pilferage, damage, loss, robbery, vandalism, arson or other unlawful acts concerning the properties owned or held in trust for their persons by **DA-BFAR IV-A**, provided that such properties are properly turned over to **CONTRACTOR** or the guard on duty, except when the loss or damages is due to fortuitous events such as conflagration not attributable to the fault or negligence of the **CONTRACTOR**, or earthquakes, typhoons, floods or other natural phenomena beyond the control of men. For purposes of this SCC, "proper turn over" shall mean a complete inventory of all property accountabilities per office provided at the outset and the ocular inspection on the succeeding occasions; and

p. At the end of the contract period, the **CONTRACTOR** shall turn over to **DA-BFAR IV-A** all property accountabilities and any amount of damages or property losses shall be deducted from the collectible amount due to the **CONTRACTOR**.

FOR AND IN CONSIDERATION of the services to be rendered by the **CONTRACTOR**, **DA-BFAR IV-A** shall during the life of the Contract, pay the **CONTRACTOR** the amount of **Two Million Five Hundred Forty-Five Thousand Two Hundred Fifty-Nine & 10/100 (Php2,545,259.10) Pesos Only** for ten (10) months for thirteen (13) guards payable every 15th and end of the month.

This Contract shall be binding and effective upon signing thereof, unless earlier terminated by **DA-BFAR IV-A** for non-compliance and/or violation of the **CONTRACTOR** or any of its agents of any of the terms and conditions thereof.

This Contract may be extended upon agreement of the parties when the exigency of the service is required.

IN WITNESS WHEREOF, the parties have hereunto set their hands this __ day of _____ at Los Baños, Laguna, Philippines.

DA-BFAR IV-A

By:

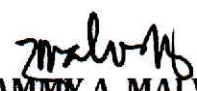

ATTY. DEMOSTHENES R. ESCOTO
BFAR National Director

CONTRACTOR

By:


LISA S. CASTILLO
CEO/President

SIGNED IN THE PRESENCE OF:


SAMMY A. MALVAS
Regional Director

Certified Funds Available:


LORENA G. MAGDA
OIC - Regional Accountant

ACKNOWLEDGEMENT

Republic of the Philippines)
City of CALAMBA CITY) S.S

BEFORE ME, this ___ day of APR 05 2024, 2024, in the CALAMBA CITY,
Philippines, personally appeared:

Name	I.D. No.	Date or Place Issued
1.		
2.		

Known to me to be the same persons who have executed the foregoing instrument,
which consists of 6 pages, including the page on which this acknowledgment is written
and acknowledged to me that the same is their free voluntary acts and deeds and that of
the parties they are representing.

IN WITNESS WHEREOF, I have hereunto set my hand and notarial seal this

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ATTY. ROLANDO H. CHIONG, JR.

Notary Public

Until December 31, 2024

PTR Nos. 8376040, 01-02-2024 Calamba City
Roll No. 31958, IBP OR No. 180754, 12-09-2022
Chiong Law Office, Calamba City, Philippines
TIN-116-095-254 Not. Com. No. 11-2023-C
MCLE Compliance VII - No. 0017987, 04-14-2025